

then A. is the owner in equity, and B., who takes the conveyance, stands in the light of a creditor (*f*).

3. **Principle applicable to personalty.**—Not only *real estate* but *personalty* also is governed by these principles, as if a man take a bond (*g*), or purchase an annuity (*h*), stock (*i*), or other chattel interest (*j*), in the name of a stranger, *the equitable ownership results to the person from whom the consideration moved.

4. **Joint advance and purchase in name of third person.**—In *Crop v. Norton* (*a*) Lord Hardwicke doubted whether the rule was not confined to an individual purchaser. But in *Wray v. Steele* (*b*) the point was expressly decided in conformity with the general principle; for what was there applicable to an advance by a *single* individual which was not equally applicable to a *joint* advance under similar circumstances?

5. **Joint advance and purchase as joint-tenants.**—If two persons, joining in a purchase, take the conveyance not in the name of a *stranger*, or of *one* of themselves, but in the names of *both* of themselves as joint-tenants, then a distinction must be observed between an *equal* and an *unequal* contribution.

Equal contribution.—In the former case there is nothing on which to ground the presumption of a resulting trust, for persons making equal advances might very consistently take an estate in joint-tenancy, as each has it in his power to compel a partition, or by executing a conveyance to pass a moiety of the estate, and in the meantime each runs his own life against that of the other (*c*). And so, if two persons

(*f*) See *Aveling v. Knipe*, 19 Ves. 441.

(*g*) *Ebrand v. Dancer*, 2 Ch. Ca. 26.

(*h*) *Mortimer v. Davies*, cited Rider *v. Kidder*, 10 Ves. 363, 366.

(*i*) *Rider v. Kidder*, 10 Ves. 360; *Loyd v. Read*, 1 P. W. 607; and see *Sidmouth v. Sidmouth*, 2 Beav. 447; *Garrick v. Taylor*, 29 Beav. 79; *Beecher v. Major*, 2 Dr. & Sm. 431.

(*j*) See *Ex parte Houghton*, 17

Ves. 253; *Garrick v. Taylor*, 29 Beav. 79.

(*a*) *Barn.* 179; S. C. 9 Mod. 233; S. C. 2 Atk. 74.

(*b*) 2 V. & B. 388.

(*c*) *Robinson v. Preston*, 4 K. & J. 505; *Rea v. Williams*, Append. to Sugd. Vend. and Purch. 11th Ed.; *Moyse v. Gyles*, 2 Vern. 385; *York v. Eaton*, 2 Freem. 23; *Rigden v. Vallier*, 3 Atk. 735, *per* Lord Hardwicke; *Hayes v. Kingdome*, 1 Vern.